

Court No. - 38

Case :- WRIT - C No. - 23332 of 2018

Petitioner :- Prahlad Singh

Respondent :- Dashchianchal Vidyut Vitran Nigam Limited And 3 Others

Counsel for Petitioner :- Sanjeev Kumar, Rakesh Kumar Rathore

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department.

The petitioner claims that in the year 2006 he was allowed connection of 7.5 HP for running a private pumping set but the connection was finally installed in the year 2009. Now, on 25.05.2018, a recovery citation for a sum of Rs.2,50,923/- has been issued against the petitioner.

Learned counsel for the petitioner submits that bill, that has been raised, treated the petitioner's connection to be of 10 HP whereas it is only of 7.5 HP. Therefore, citation issued against the petitioner is illegal and no recovery can be made against him.

Against the recovery, the petitioner has a remedy of filing a representation/objection before Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005.

In view of the above, the writ petition is finally **disposed of** with the direction that in case the petitioner files his representation/objection against the aforesaid recovery before the Executive Engineer concerned alongwith a certified copy of this order within a week from today, the same shall be considered and appropriate order be passed by him within one month thereafter.

For a period of one month or till decision on the objection of the petitioner, whichever is earlier, no coercive measure shall be taken against the petitioner pursuant to the impugned recovery citation.

Order Date :- 11.7.2018

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(Shashi Kant, J.) (Abhinava Upadhyaya, J.)